



File No.: EXP202306251

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 8, 2019, a complaint was filed with entry registration number 012129/2019 before the Spanish Agency for Data Protection against FACUA - CONSUMER AND USER ASSOCIATION IN ACTION (hereinafter, the complained party), in which the complainant stated that the complained party registered individuals as members of their organization without their authorization, and that this had been done with the complainant and with Ms. A.A.A. Furthermore, it was indicated that on January 24, 2019, B.B.B. informed her via email that, taking advantage of the facility provided by FACUA, they had registered the complainant as a full member of FACUA on December 31, 2018, without her having authorized FACUA to do so. It was also claimed that the registration in the name of the complainant was communicated by the complained party to B.B.B. but not to her.

The complainant continues her writing by stating that she proceeded to investigate whether this was a common practice of FACUA or if it had been an isolated error. To do this, she made calls to three different FACUA delegations (Almería, Jaén, and Cádiz). In these calls, she was informed about how to become a member, and when she asked about the procedure to register the family unit, they indicated that by simply providing the details of third parties via email, they would register them. They explicitly confirmed that the authorization of the third party was not necessary to register them in their files.

Along with the complaint, the following documents were submitted:

- Copy of the email chain between FACUA and B.B.B. regarding the registration as a full member of the complainant.
- DVD of the recordings of the calls made by the complainant to three FACUA delegations (Almería, Jaén, and Cádiz) in which she was informed about how to register as a member of that organization and the procedure to register the "family" unit.
- Copy of the email chain between FACUA and B.B.B. regarding the registration as a member of Ms. A.A.A.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month, of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/8

actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the established rules in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded as evidenced by the acknowledgment of receipt that is part of the file.

THIRD: On 26/04/2019, this Agency received a written response indicating, in summary, the following: Firstly, it understands that there is a lack of passive legitimacy because the registration as family members of the referenced individuals was made by FACUA Almería and not by FACUA, and that both associations have their own legal personality and different CIFs, with FACUA Almería having G04455341 and the responding party having G91344986. In this regard, it states that FACUA is responsible for the member file and has signed a data access contract with FACUA Almería on behalf of third parties so that this association can register (modify and deregister) data from said file for individuals who affiliate in Almería, having to process the data according to the instructions given by FACUA as the responsible party. It insists that the affiliation occurred through FACUA Almería and

proceeds to inform this Agency that the Consumers and Users Association in Action - FACUA has an internal protocol aimed at managing the registration of new members and, consequently, the registration of personal data of new affiliates in the FACUA files. Furthermore, and in case the establishment of said protocol might not be sufficient, FACUA proceeded to contract the services of the company ANÁLISIS Y GESTIÓN DE DATOS S.L., all with the purpose of allowing an external entity to periodically evaluate that the activities of this association comply with the current data protection regulations. Thus, FACUA has approved an internal protocol for the registration of members, both holders and family members or beneficiaries, which requires the consent of each of them to process their registration and incorporate their personal data into our database as members. This protocol is approved and must be applied by all associations linked to FACUA, including FACUA Almería.

FOURTH: Considering the facts contained in the complaint and the documents submitted along with it, as well as the written response from FACUA to the transfer of the complaint and the attached documentation, on 23/07/2019, a resolution for partial filing of the complaint was issued, signed by the Deputy Director of Data Inspection, by virtue of the abstention from exercising her functions by the Director of the Spanish Agency for Data Protection as recorded in the Resolution dated 28/03/2019, motivated by being considered to fall under one of the grounds for abstention provided for in Article 23.2.a) of Law 40/2015, of October 1, on the Legal Regime of the Public Sector.

FIFTH: Against said resolution, the complainant filed administrative contentious appeal no.

***RECURSO.1 before the National Court, which resolved by SAN ***SAN.1 of 03/03/2022, ordering that the Resolution of the Spanish Agency for Data Protection Ref. ***REFERENCIA.1 be annulled, insofar as it agrees to archive the complaint filed by such complainant, ordering instead that by the C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/8

The Spanish Agency for Data Protection initiates inspection actions in order to carry out the necessary investigations to determine whether circumstances exist that justify the initiation of sanctioning proceedings against FACUA.

On May 20, 2022, a document with registration number REGAGE22e00019790722 was entered into the AEPD registry, which transmits a copy of the judgment issued by that judicial body regarding procedure no.: E/03181/2019, corresponding to contentious-administrative appeal no.:

***RECURSO.2, filed by C.C.C. against the Resolution of the Director of the Spanish Agency for Data Protection.

SIXTH: As a consequence of the above and in compliance with the execution of the judgment in its own terms, on June 28, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection, which states,

“FIRST: Execute the judgment in accordance with Article 104.1 of the LJCA:

‘Once a judgment is final, the court clerk shall communicate it within ten days to the body that carried out the activity subject to the appeal, so that, upon receiving the communication, it carries it out in due form and practices what is required to comply with the declarations contained in the ruling, and within the same period indicates the body responsible for compliance with it.’

SECOND: Admit the claim filed by C.C.C. for processing.

THIRD: Urge the General Subdirectorate of Data Inspection to initiate the preliminary investigation actions referred to in Article 67 of Organic Law 3/2018, of December 6, on Personal Data Protection and the guarantee of digital rights, regarding the actions of FACUA, in case such facts suggest indications of infringement within the competence of the AEPD.”

SEVENTH: By virtue of the above, the General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, under the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

From the facts contained in the complaint and the documents submitted along with it, as well as from the response to the transfer and the documentation provided with it and that submitted by FACUA, following a request for information, the inspection reaches the following conclusions:

1.- Although FACUA claims that the complainant (member XXXX) and Ms. A.A.A. (member XXXX) have been registered by phone, from the documentation provided by the complainant and which is incorporated in these investigation proceedings, it is verified that the registrations of member XXXX and member XXXX are made at the request of member XXXX (Mr. B.B.B.) by email.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/8

2.- The claiming party called FACUA requesting information when member XXXX forwarded the email informing that they had already been registered as a member of FACUA. In the calls, it is the claiming party who states that they do not have extensive computer knowledge to provide the documentation of the members of their family unit and asks if they can send it by email. They were informed that they could send the data of the members of the family unit by mail and that they would be registered by FACUA without the need to provide consent.

3.- FACUA registered the claiming party and Ms. A.A.A. as members without their consent, at the request of a third party, who had previously registered as a full member of FACUA.

4.- As informed by three entities associated with FACUA (FACUA Almería, Jaén, and Cádiz) and as stated in the Annexes of the PROTOCOL, the coverage that FACUA offers to members also includes the members of the family unit of the member.

5.- FACUA approved a PROTOCOL FOR THE MANAGEMENT AND LOYALTY OF MEMBERS on 09/02/2019, which, among other aspects, contains as Annexes the membership registration forms, both for primary members and for affiliates and family members, which require the signature of the person requesting membership.

6.- According to FACUA, it has enabled a method for the accreditation of consent to register online as a member, in any of its modalities. It provides screenshots of the step-by-step registration process, conducted as evidence, but not the corresponding ones for each of the members requested in the requirement. It also provides what it calls an image of the database of the program where it supposedly "confirms the registration, its date, the encrypted key provided to the member at the email they provided for confirmation or validation of the registration."

This image is presented in a table format, on a blank sheet, although the database from which it was obtained is not accredited, nor is the date of the query. The following fields are included in this table for each of the members thus registered, included in the requested information requirement: Member No.; First Name; Last Name; MD5 Password; Registration Date; Account Activation; and Status.

7.- There is a discrepancy between the statements made by FACUA regarding the impossibility of providing the documentation of members due to their having been deregistered as members and the retention period of members' data that appears in the privacy policy of FACUA Almería (***URL.1), according to which "The retention period of your data will be, according to current regulations, four years once you are deregistered from our files."

LEGAL GROUNDS

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/8

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided

in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

Article 6 of the GDPR, which regulates the legality of processing, establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

2. Member States may maintain or introduce more specific provisions to adapt the application of the rules of this Regulation regarding processing in compliance with paragraph 1, points c) and e), setting out more precise specific requirements for processing and other measures that ensure a..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/8

lawful and fair treatment, including other specific situations of treatment pursuant to Chapter IX.

3. The basis for the treatment indicated in paragraph 1, letters c) and e), shall be established by:

- a) Union Law, or
- b) the Law of the Member States applicable to the data controller.

The purpose of the treatment must be determined in that legal basis or, in relation to the treatment referred to in paragraph 1, letter e), it shall be necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller. This legal basis may contain specific provisions to adapt the application of the rules of this Regulation, among others: the general conditions governing the lawfulness of the treatment by the controller; the types of data subject to treatment; the affected data subjects; the entities to which personal data may be communicated and the purposes of such communication; the limitation of purpose; the retention periods for the data, as well as the operations and procedures of the treatment, including measures to ensure lawful and fair treatment, such as those relating to other specific situations of treatment pursuant to Chapter IX. Union Law or the Law of the Member States shall fulfill a public interest objective and shall be proportional to the legitimate aim pursued.

4. When the treatment for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union Law or the Law of the Member States that constitutes a necessary and proportional measure in a democratic society to safeguard the objectives indicated in Article 23, paragraph 1, the data controller, in order to determine whether the treatment for another purpose is compatible with the purpose for which the personal data were initially collected,

shall take into account, among other things:

- a) any relationship between the purposes for which the personal data were collected and the purposes of the intended further treatment;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, specifically when special categories of personal data are processed, in accordance with Article 9, or personal data related to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further treatment;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

III

Article 12 of Law 3/2015, of March 30, regulating the exercise of senior positions in the General Administration of the State, applicable to the director of the Spanish Agency for Data Protection, states in its first paragraph that "Senior officials must perform their functions and competencies without incurring conflicts of interest."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/8

interests and, if it considers that it is, must refrain from making the decision affected by them."

Furthermore, Article 48.2 of the LOPDGDD establishes that, "In cases of absence, vacancy, or illness of the person holding the Presidency or when any of the grounds for abstention or recusal provided for in Article 23 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, apply to them, the exercise of the competencies related to the procedures regulated by Title VIII of this organic law shall be assumed by the person holding the management body that performs inspection functions. In the event that any of the aforementioned circumstances also apply to that person, the exercise of the affected competencies shall be assumed by the heads of the management bodies at the level of deputy general director, in the order established in the Statute."

Therefore, considering that in the present case the reason for abstention provided for in Article 11.2.a) of Law 3/2015, of March 30, regulating the exercise of senior positions in the General State Administration, relating to personal interests, applies, the director of the Spanish Agency for Data Protection has proceeded to abstain in the present procedure as of July 20, 2023.

For the above reasons and in application of the provisions of Article 13 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP) and following the provisions of Article 48.2 of the LOPDGDD, in this case, it will be the person holding the management body that performs inspection functions who will exercise the competencies related to the present procedure.

IV

According to the conclusions of the preliminary investigation report, there is evidence of a possible infringement of Article 6.1 of the GDPR as there is no indication that any of the circumstances set out in that article exist to consider that lawful processing has occurred.

However, the statute of limitations for infringements is established in Articles 72, 73, and 74 of the LOPDGDD as 3, 2, or 1 year depending on whether they are classified, for the purposes of the statute of limitations, as very serious, serious, or minor, and this period has been exceeded since the date of the possible infringement, December 31, 2018, the date on which the complainant was registered as a member of FACUA.

For informational purposes, it should be noted that the statute of limitations for infringements is not interrupted either by the performance of preliminary investigation actions or by the filing of a contentious-administrative appeal.

Thus, in accordance with the provisions of Article 48.2 of the LOPDGDD, the Deputy Director General of Data Inspection AGREES:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/8

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to FACUA - ASSOCIATION OF CONSUMERS AND USERS IN ACTION and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided for in Article 46.1 of the aforementioned Law.

940-020323

A.A.A.

Director of the Spanish Agency for Data Protection

D.D.D.

(P.S. Deputy Director General of Data Inspection)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es